

**BEFORE  
THE FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 22-34**

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SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND  
ATLANTIC FORWARDING LTD.

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**JOINT MOTION TO AMEND SCHEDULING ORDER**

Pursuant to 46 CFR § 502.141(l) and 46 CFR § 502.71 of the Federal Maritime Commission’s Rules of Practice and Procedure, the Complainant SEAFAIR USA LLC (“SeaFair” or “Complainant”) and Respondents STERLING CONTAINER LINE LIMITED and ATLANTIC FORWARDING LTD. (together with Sterling, the “Respondents”, and jointly with SeaFair, the “Parties”), hereby submit this Joint Motion to Amend the Scheduling Order dated January 18, 2023 (“Scheduling Order”) [Dkt. 7], as amended by the April 26, 2023 Order granting the Parties’ Joint Motion to Amend Scheduling Order (“Amended Scheduling Order”) [Dkt. 14].

**I. BACKGROUND**

The Scheduling Order called for the Parties to serve all discovery requests by April 25, 2023 [Dkt. 7]. Respondents served their joint initial discovery requests on February 17, 2023. Complainant served its responses on April 04, 2023, after requesting an extension on March 03, 2023[Dkt. 11], that was granted by the honorable Administrative Law Judge [Dkt. 12], and a brief

12-hour extension on April 03, 2023, that was granted by Respondents' counsel. Complainant served its initial discovery requests on Respondents on March 10, 2023. However, due to staff changes within Respondents' entities and the breadth of requests propounded by Complainant, Respondents requested a twenty-one (21) day extension to respond to Complainant's discovery requests. Complainant agreed to a fourteen (14) day extension. Respondents served their responses to the Requests for Admission and Interrogatories on April 24, 2023.

Counsel for the Parties consulted in good faith and mutually agreed to file a Joint Motion to Amend the Scheduling Order to extend the deadline to serve discovery requests to May 01, 2023 [Dkt. 13]. The only other deadline on the Scheduling Order altered by the requested extension was the deadline to complete discovery, which was modified to June 01, 2023. On April 26, 2023, the Chief Administrative Law Judge issued the Amended Scheduling Order granting the Parties' request for extension [Dkt. 14].

On May 1, 2023, Respondents served a First Set of Interrogatories, First Set of Requests for Admission, and a Second Set of Requests for Production. On the same day, SeaFair served a Second Set of Interrogatories, Requests for Admission, and Requests for Production. Respondents served their Responses on May 31, 2023.

Due to some disputes over SeaFair's discovery requests, which the Parties are diligently attempting to resolve without involving the Commission, and to some difficulty by SeaFair to gather the documents requested by Respondents' discovery requests, the Parties hereby move again for brief extensions as follow:

- 1) A one (1) day extension until June 02, 2023, for SeaFair to fully respond to outstanding discovery requests from Respondents.

- 2) A seven (7) day extension until June 08, 2023, for the Parties to attempt to amicably resolve disputes relating to unanswered or incompletely responded discovery requests.
- 3) A ten (10) day extension until June 11, 2023 for the completion of all discovery, including the filing of discovery-related motions.

No other deadlines from the Amended Scheduling Order will be affected. Mediation is tentatively scheduled for June 16, 2023, and all discovery will have been completed by then.

## **II. GOOD CAUSE**

The Parties bring this motion for good cause. The documentation relating to the transactions between the Parties is extensive and requires time to carefully assemble and to review. Also, since Parties are in the process of scheduling mediation to take place on or around June 16, 2023, allowing the extension will give parties the chance to exchange documents and facilitate mediation. The Parties are diligently seeking to resolve the discovery-related disputes amongst counsel without involving the Commission. The granting of the motion to amend the Scheduling Order to allow the requested extensions – one (1) more day for SeaFair to respond to Respondents' requests, seven (7) more days for production related to disputed requests and ten (10) days for the Parties to fully complete discovery, including the filing of any discovery-related motions, will make a more efficient and just resolution to this action possible.

## **III. PROPOSED CHANGE TO SCHEDULING ORDER**

The Parties propose the following alterations to the Scheduling Order:

| <b>Event</b>                                                                                                    | <b>Current Deadline</b> | <b>Proposed New Deadline</b> |
|-----------------------------------------------------------------------------------------------------------------|-------------------------|------------------------------|
| Last day to serve discovery requests                                                                            | May 01, 2023            | <i>unchanged</i>             |
| <i>Last day for SeaFair to serve discovery responses</i>                                                        | <i>May 31, 2023</i>     | <i>June 02, 2023</i>         |
| <i>Last day for both Parties to serve final discovery responses, including to disputed requests</i>             | <i>June 01, 2023</i>    | <i>June 08, 2023</i>         |
| Depositions completed                                                                                           | May 24, 2023            | <i>unchanged</i>             |
| Close of all discovery                                                                                          | June 01, 2023           | June 11, 2023                |
| Complainant's brief, proposed findings of fact, and appendix.                                                   | June 27, 2023           | <i>unchanged</i>             |
| Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix. | July 26, 2023           | <i>unchanged</i>             |
| Complainant's reply brief and responses to proposed findings of fact.                                           | August 10, 2023         | <i>unchanged</i>             |

The motion does not seek an extension of other deadlines in the current Scheduling Order and will not delay the proceeding.

The Parties believe good cause exists for granting the instant motion to amend the Scheduling Order and respectfully request that the presiding officer extend the deadlines cited herein, as shown in the table above.

Date: June 01, 2023

Respectfully Submitted,

*[signature blocks on following page]*

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**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on this 1st day of June 2023, the foregoing Joint Motion to Amend Scheduling Order was served via electronic mail on:

Federal Maritime Commission  
Office of the Secretary  
[secretary@fmc.gov](mailto:secretary@fmc.gov)

Federal Maritime Commission  
The Honorable Erin M. Wirth  
Chief Administrative Law Judge  
Presiding Administrative Law Judge  
[judges@fmc.gov](mailto:judges@fmc.gov)

/s/ Shanshan Liang  
Shanshan Liang, Esq.